

25NNCV04816 25NNCV04816

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NNCV04816 Hearing Date: August 20, 2026 Dept: P

[TENTATIVE] ORDER GRANTING IN
PART AND DENYING IN PART DEFENDANT'S MOTION TO STRIKE

I. INTRODUCTION

Plaintiff Edison Ogunlalaka

("Plaintiff"), in pro per, brings this action against Defendant Centennial Place, LP ("Defendant") arising from his tenancy at the Centennial Place Apartments. Plaintiff filed the operative First Amended Complaint ("FAC") on January 7, 2026, alleging causes of action for (1) breach of the implied covenant of good faith and fair dealing, (2) disability discrimination, (3) retaliatory eviction, and (4) negligence and breach of habitability.

On April 23, 2026, the Court overruled Defendant's demurrer to the first cause of action and granted Defendant's motion to strike the third and fourth causes of action without leave to amend. The Court also granted Defendant leave to file a more narrowly tailored motion to strike improper allegations concerning the prior unlawful detainer proceedings.

On May 22, 2026, Defendant filed the instant motion to strike paragraphs 4.4(a), 4.4(d), and 4.6 of the FAC. The motion is unopposed.

II. LEGAL STANDARD

"The court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of

complaint], or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Id. § 436 (a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (Id., § 431.10.) The court may also “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Id. § 436(b).)

III. ANALYSIS

Defendant

moves to strike paragraphs 4.4(a), 4.4(d), and 4.6 of the FAC, arguing they improperly rely on Defendant’s prior unlawful detainer action, which is protected by the litigation privilege. (Motion, pp. 5-6.) Defendant notes the Court previously found the unlawful detainer proceedings privileged and granted Defendant leave to bring a narrower motion to strike the remaining improper allegations. (Motion, p. 6.)

In its April 23, 2026, ruling, however, the Court also found that Plaintiff stated a viable claim based on conduct independent of the unlawful detainer action—namely, that Defendant promised to return Plaintiff to his unit after renovations but failed to do so. (4/23/26, Minute Order, pp. 5-6.)

Thus, the Court considers each challenged allegation to determine whether it is based on privileged litigation activity or Defendant’s independent conduct.

As to paragraph 4.4(a), the motion is DENIED. This paragraph alleges that, on November 15, 2024, Defendant forcibly removed Plaintiff from Unit 114 without legal process. On its face, the alleged self-help removal is independent of Defendant’s subsequent litigation activity and therefore is not subject to the litigation privilege.

As to 4.4(d), the motion is GRANTED. Unlike paragraph 4.4(a), paragraph 4.4(d) expressly relies on Defendant’s filing and prosecution of the unlawful detainer action, alleging Defendant filed a “fraudulent unlawful detainer action” under false pretenses to further Plaintiff’s removal. As the Court previously found, Defendant’s prosecution of the unlawful detainer proceeding constitutes privileged

litigation activity. Thus, paragraph 4.4(d) is subject to the litigation privilege and is stricken.

As to paragraph 4.6, the motion is GRANTED. Paragraph 4.6 directly challenges the unlawful detainer judgment, alleging it was obtained by fraud and should not be given effect. These allegations concern Defendant's conduct in the unlawful detainer proceeding and are therefore subject to the litigation privilege. Thus, paragraph 4.6 is stricken.

The Court

GRANTS IN PART and DENIES IN PART Defendant's motion. The Court strikes paragraphs 4.4(d) and 4.6 of the FAC. The motion is DENIED as to paragraph 4.4(a).

IV. ORDER

The Court

GRANTS IN PART and DENIES IN PART Defendant's motion. The Court strikes paragraphs 4.4(d) and 4.6 of the FAC. The motion is DENIED as to paragraph 4.4(a).

Defendant is to give notice.

Dated: August 20, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT